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of second or successive habeas petitions if they were labeled as Rule 59(e) motions and that AEDPA's express and tight restrictions on second or successive petitions were enacted on the understanding that this feature of pre-AEDPA practice would not be disturbed. That is a tall order indeed, and this inconclusive case law does not suffice. See, *e. g.*, *Isbrandtsen Co. v. Johnson*, 343 U. S. 779, 783 (1952) ("Statutes . . . are to be read with a presumption favoring the retention of long-established and familiar principles").

IV

A

The Court muses that its opinion "may make habeas proceedings more efficient," *ante*, at 516, but improving statutes is not our job, and in any event, the Court's assessment of the consequences of its decision is dubious.

State prisoners file thousands of federal habeas petitions per year.³ After a petition is denied, as most are, the Court suggests that Rule 59(e) gives federal habeas courts a chance "to correct their own errors" or "to clarify their reasoning," but the value of this opportunity is questionable since, as the Court admits, "Rule 59(e) motions seldom change judicial outcomes." *Ibid.* Statistics agree that, in the main, district courts resolve habeas petitions correctly. In 2019, appeals courts reversed in only a miniscule percentage of appeals in cases involving state prisoners' habeas claims.⁴

The Court is probably right that, once in a while, a Rule 59(e) motion could save the need for an appeal. But that positive effect is very likely outweighed by the burden imposed by the entirely meritless Rule 59(e) motions that

³ See Administrative Office of the U. S. Courts, Federal Judicial Caseload Statistics, U. S. District Courts—Civil Cases Commenced, by Basis of Jurisdiction and Nature of Suit (2019) (Table C-2). State prisoners' habeas petitions are listed under the "Federal Question" category of "Private Cases."

⁴ See *id.*, Table B-5.

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today's decision will give prisoners an incentive to file. Not only will prisoners file such motions on the off chance of winning, but some may file simply to toll the deadline for filing an appeal, Fed. Rule App. Proc. 4(a)(4)(A)(iv). The burden of wading through these motions will not always be "slight." *Ante*, at 517; see App. 219–253 (Banister's motion). And the aggregate burden on the district courts may actually be quite substantial.

The Court's decision would be more understandable if it offered any real benefit for habeas petitioners, but it does not. As Banister concedes, see Brief for Petitioner 33, the standard for Rule 59(e) relief from an erroneous judgment is higher than the standard for permission to appeal. Compare *Miller-El v. Cockrell*, 537 U. S. 322, 336 (2003) ("reasonable debate" standard for a certificate of appealability), with 11 Wright & Miller §2810.1 ("manifest error" standard for Rule 59(e) relief). So if a prisoner has a claim that can prevail under Rule 59(e), there should be no problem in obtaining permission to appeal. That is the procedure prescribed by AEDPA, and it is an entirely reasonable one that does not prejudice habeas petitioners.

B

If treated according to their substance rather than their label, Rule 59(e) motions would still have "an unquestionably valid role to play" in habeas cases. *Gonzalez*, 545 U. S., at 534. The construction of AEDPA in *Gonzalez* did not doom the Rule 60(b) motion at issue in that case. Although deficient for other reasons, that motion challenged "a nonmerits aspect of the first federal habeas proceeding," the denial of the habeas petition on timeliness grounds. *Ibid.* That sort of claim is not the equivalent of a habeas claim. It does not assert a federal basis for relief from the state-court judgment; rather, it seeks to cure a "defect" in the federal habeas proceeding itself. *Id.*, at 532.

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Rule 59(e) motions can do the same. Through that Rule, a petitioner can flag manifest errors in a district court’s application of AEDPA’s statute of limitations, AEDPA’s exhaustion requirement, or the rules of procedural default. See *Webb v. Davis*, 940 F. 3d 892, 898 (CA5 2019) (*per curiam*) (adding “the district court’s denial of funding, the district court’s dismissal of claims without conducting an evidentiary hearing, . . . the district court’s failure to consider claims presented in the habeas application,” and “the denial of a claim based on a valid appeal waiver” (internal quotation marks omitted)). These challenges relate only to a petitioner’s ability to assert a claim, not the merits of the claim itself. Under *Gonzalez*, a petitioner could seek reconsideration of them unencumbered by § 2244(b).

That is not what Banister sought. In substance, his Rule 59(e) motion was simply a repackaged version of his petition, and since the Fifth Circuit had not authorized him to file it, the District Court had no jurisdiction to consider it. See *Burton v. Stewart*, 549 U. S. 147, 153 (2007) (*per curiam*).

V

The question remains whether Banister’s Rule 59(e) motion tolled his appeal deadline. Under 28 U. S. C. § 2107(a), the Fifth Circuit could hear his appeal only if he filed it within 30 days of the District Court’s judgment. See *Hamer v. Neighborhood Housing Servs. of Chicago*, 583 U. S. 17, 19 (2017). During that time, Banister filed his Rule 59(e) motion, but he did not file his appeal until 66 days after the court denied his habeas petition.

Appellate Rule 4(a) provides that “the time to file an appeal runs for all parties from the entry of the order disposing of,” among other things, a Rule 59(e) motion. Fed. Rule App. Proc. 4(a)(4)(A)(iv). Not on that list: successive habeas petitions. Since that is what Banister’s Rule 59(e) motion was in substance, it did not toll his appeal deadline.

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Banister contends that, even if his Rule 59(e) motion constituted a habeas petition, the simple act of filing it gave him more time to appeal. He points to the statement in *Artuz v. Bennett*, 531 U. S. 4 (2000), that an application is commonly regarded as having been “‘filed’” if “‘it is delivered to, and accepted by, the appropriate court officer for placement into the official record.’” *Id.*, at 8. Under this definition, he argues, his motion was filed, and therefore, the time to take an appeal was tolled until it was denied.

This argument fails because the timeliness of Banister’s appeal does not depend on whether what Banister labeled a Rule 59(e) motion was “filed” in the District Court. Under Appellate Rule 4(a), the time to appeal runs from the date when the district court finally disposes of a motion falling within one of six categories, including motions to alter or amend the judgment under Rule 59. And whether a motion falls into one of those categories depends on the substance of the motion, not the label that is affixed to it. See, e.g., *Budinich v. Becton Dickinson & Co.*, 486 U. S. 196, 199–200, 203 (1988) (a motion for attorney’s fees is not equivalent to a Rule 59(e) motion and did not toll the time to appeal); *State Nat. Ins. Co. v. County of Camden*, 824 F. 3d 399, 410 (CA3 2016); *Yost v. Stout*, 607 F. 3d 1239, 1243 (CA10 2010); *Borrero v. Chicago*, 456 F. 3d 698, 700 (CA7 2006); *Moody Nat. Bank of Galveston v. GE Life & Annuity Assurance Co.*, 383 F. 3d 249, 251 (CA5 2004); *Jones v. UNUM Life Ins. Co. of America*, 223 F. 3d 130, 136 (CA2 2000). Thus, to toll the time to appeal, Banister’s motion had to be a motion to alter or amend, and because §2244(b) dictates that his motion be treated as a habeas petition, it cannot be allowed to toll the time to appeal.

* * *

I would hold that a Rule 59(e) motion that constitutes a second or successive habeas petition is subject to §2244(b) and that such a motion does not toll the time to appeal. I

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therefore conclude that the Fifth Circuit was correct to dismiss Banister’s untimely appeal. Because the Court holds to the contrary, I respectfully dissent.

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Syllabus

THOLE ET AL. *v.* U. S. BANK N. A. ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE EIGHTH CIRCUIT

No. 17-1712. Argued January 13, 2020—Decided June 1, 2020

Plaintiffs James Thole and Sherry Smith are retired participants in U. S. Bank's defined-benefit retirement plan, which guarantees them a fixed payment each month regardless of the plan's value or its fiduciaries' good or bad investment decisions. Both have been paid all of their monthly pension benefits so far and are legally and contractually entitled to those payments for the rest of their lives. Nevertheless, they filed a putative class-action suit against U. S. Bank and others (collectively, U. S. Bank) under the Employee Retirement Income Security Act of 1974 (ERISA), alleging that the defendants violated ERISA's duties of loyalty and prudence by poorly investing the plan's assets. They request the repayment of approximately \$750 million to the plan in losses suffered due to mismanagement; injunctive relief, including replacement of the plan's fiduciaries; and attorney's fees. The District Court dismissed the case, and the Eighth Circuit affirmed on the ground that the plaintiffs lack statutory standing.

Held: Because Thole and Smith have no concrete stake in the lawsuit, they lack Article III standing. See *Lujan v. Defenders of Wildlife*, 504 U. S. 555, 560–561. Win or lose, they would still receive the exact same monthly benefits they are already entitled to receive.

None of the plaintiffs' arguments suffices to establish Article III standing. First, the plaintiffs rely on a trust analogy in arguing that an ERISA participant has an equitable or property interest in the plan and that injuries to the plan are therefore injuries to the participants. But participants in a defined-benefit plan are not similarly situated to the beneficiaries of a private trust or to participants in a defined-contribution plan, and they possess no equitable or property interest in the plan, see *Hughes Aircraft Co. v. Jacobson*, 525 U. S. 432, 439–441. Second, the plaintiffs cannot assert representative standing based on injuries to the plan where they themselves have not “suffered an injury in fact,” *Hollingsworth v. Perry*, 570 U. S. 693, 708, or been legally or contractually appointed to represent the plan. Third, the fact that ERISA affords all participants—including defined-benefit plan participants—a cause of action to sue does not satisfy the injury-in-fact requirement here. “Article III standing requires a concrete injury even in the context of a statutory violation.” *Spokeo, Inc. v. Robins*, 578

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U. S. 330, 341. Fourth, the plaintiffs contend that meaningful regulation of plan fiduciaries is possible only if they may sue to target perceived fiduciary misconduct. But this Court has long rejected that argument for Article III standing, see *Valley Forge Christian College v. Americans United for Separation of Church and State, Inc.*, 454 U. S. 464, 489, and defined-benefit plans are regulated and monitored in multiple ways.

The plaintiffs' *amici* assert that defined-benefit plan participants have standing to sue if the plan's mismanagement was so egregious that it substantially increased the risk that the plan and the employer would fail and be unable to pay the participants' future benefits. The plaintiffs do not assert that theory of standing here, nor did their complaint allege that level of mismanagement. Pp. 541–547.

873 F. 3d 617, affirmed.

KAVANAUGH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, and GORSUCH, JJ., joined. THOMAS, J., filed a concurring opinion, in which GORSUCH, J., joined, *post*, p. 547. SOTOMAYOR, J., filed a dissenting opinion, in which GINSBURG, BREYER, and KAGAN, JJ., joined, *post*, p. 549.

Peter K. Stris argued the cause for petitioners. With him on the briefs were *Brendan S. Maher, Rachana A. Pathak, Douglas D. Geyser, John Stokes, Karen L. Handorf, Michelle C. Yau, and Mary J. Bortscheller*.

Sopan Joshi argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Francisco, Deputy Solicitor General Kneedler, and G. William Scott*.

Joseph R. Palmore argued the cause for respondents. With him on the brief were *Deanne E. Maynard, James R. Sigel, Stephen P. Lucke, and Andrew Holly*.*

*Briefs of *amici curiae* urging reversal were filed for AARP et al. by *Dara S. Smith and William Alvarado Rivera*; for Law Professors by *Erin M. Riley, Matt Gerend, and David S. Preminger*; for the Pension Rights Center by *Elizabeth Hopkins and Karen W. Ferguson*; and for Public Citizen by *Nandan M. Joshi and Scott L. Nelson*.

Briefs of *amici curiae* urging affirmance were filed for the Chamber of Commerce of the United States of America et al. by *Andrew J. Pincus, Brian D. Netter, Nancy G. Ross, Jed W. Glickstein, Daryl Joseffer, An-*

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JUSTICE KAVANAUGH delivered the opinion of the Court.

To establish standing under Article III of the Constitution, a plaintiff must demonstrate (1) that he or she suffered an injury in fact that is concrete, particularized, and actual or imminent, (2) that the injury was caused by the defendant, and (3) that the injury would likely be redressed by the requested judicial relief. See *Lujan v. Defenders of Wildlife*, 504 U. S. 555, 560–561 (1992).

Plaintiffs James Thole and Sherry Smith are two retired participants in U. S. Bank’s retirement plan. Of decisive importance to this case, the plaintiffs’ retirement plan is a defined-benefit plan, not a defined-contribution plan. In a defined-benefit plan, retirees receive a fixed payment each month, and the payments do not fluctuate with the value of the plan or because of the plan fiduciaries’ good or bad investment decisions. By contrast, in a defined-contribution plan, such as a 401(k) plan, the retirees’ benefits are typically tied to the value of their accounts, and the benefits can turn on the plan fiduciaries’ particular investment decisions. See *Beck v. PACE Int’l Union*, 551 U. S. 96, 98 (2007); *Hughes Aircraft Co. v. Jacobson*, 525 U. S. 432, 439–440 (1999).

As retirees and vested participants in U. S. Bank’s defined-benefit plan, Thole receives \$2,198.38 per month, and Smith receives \$42.26 per month, regardless of the plan’s value at any one moment and regardless of the investment decisions of the plan’s fiduciaries. Thole and Smith have been paid all of their monthly pension benefits so far, and they are legally and contractually entitled to receive those same monthly payments for the rest of their lives.

Even though the plaintiffs have not sustained any monetary injury, they filed a putative class-action suit against

thony F. Shelley, and Theresa S. Gee; for the New England Legal Foundation by Benjamin G. Robbins and Martin J. Newhouse; and for the Washington Legal Foundation by Richard A. Samp and Cory L. Andrews.

Thomas J. Ward and Amy C. Chai filed a brief for the National Association of Home Builders of the United States as amicus curiae.

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U.S. Bank and others (collectively, U.S. Bank) for alleged mismanagement of the defined-benefit plan. The alleged mismanagement occurred more than a decade ago, from 2007 to 2010. The plaintiffs sued under ERISA, the aptly named Employee Retirement Income Security Act of 1974, 88 Stat. 829, as amended, 29 U.S.C. §1001 *et seq.* The plaintiffs claimed that the defendants violated ERISA’s duties of loyalty and prudence by poorly investing the assets of the plan. The plaintiffs requested that U.S. Bank repay the plan approximately \$750 million in losses that the plan allegedly suffered. The plaintiffs also asked for injunctive relief, including replacement of the plan’s fiduciaries. See ERISA §§502(a)(2), (3), 29 U.S.C. §§1132(a)(2), (3).

No small thing, the plaintiffs also sought attorney’s fees. In the District Court, the plaintiffs’ attorneys requested at least \$31 million in attorney’s fees.

The U.S. District Court for the District of Minnesota dismissed the case, and the U.S. Court of Appeals for the Eighth Circuit affirmed on the ground that the plaintiffs lack statutory standing. 873 F.3d 617 (2017). We granted certiorari. 588 U.S. 919 (2019).

We affirm the judgment of the U.S. Court of Appeals for the Eighth Circuit on the ground that the plaintiffs lack Article III standing. Thole and Smith have received all of their monthly benefit payments so far, and the outcome of this suit would not affect their future benefit payments. If Thole and Smith were to *lose* this lawsuit, they would still receive the exact same monthly benefits that they are already slated to receive, not a penny less. If Thole and Smith were to *win* this lawsuit, they would still receive the exact same monthly benefits that they are already slated to receive, not a penny more. The plaintiffs therefore have no concrete stake in this lawsuit. To be sure, their attorneys have a stake in the lawsuit, but an “interest in attorney’s fees is, of course, insufficient to create an Article III case or controversy where none exists on the merits of the underlying claim.”

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Lewis v. Continental Bank Corp., 494 U. S. 472, 480 (1990); see *Steel Co. v. Citizens for Better Environment*, 523 U. S. 83, 107 (1998) (same). Because the plaintiffs themselves have no concrete stake in the lawsuit, they lack Article III standing.

* * *

If Thole and Smith had not received their vested pension benefits, they would of course have Article III standing to sue and a cause of action under ERISA § 502(a)(1)(B) to recover the benefits due to them. See 29 U. S. C. § 1132(a)(1)(B). But Thole and Smith have received all of their monthly pension benefits so far, and they will receive those same monthly payments for the rest of their lives.

To nonetheless try to demonstrate their standing to challenge alleged plan mismanagement, the plaintiffs have advanced four alternative arguments.

First, analogizing to trust law, Thole and Smith contend that an ERISA defined-benefit plan participant possesses an equitable or property interest in the plan, meaning in essence that injuries to the plan are by definition injuries to the plan participants. Thole and Smith contend, in other words, that a plan fiduciary's breach of a trust-law duty of prudence or duty of loyalty itself harms ERISA defined-benefit plan participants, even if the participants themselves have not suffered (and will not suffer) any monetary losses.

The basic flaw in the plaintiffs' trust-based theory of standing is that the participants in a defined-benefit plan are not similarly situated to the beneficiaries of a private trust or to the participants in a defined-contribution plan. See *Varity Corp. v. Howe*, 516 U. S. 489, 497 (1996) (trust law informs but does not control interpretation of ERISA). In the private trust context, the value of the trust property and the ultimate amount of money received by the beneficiaries will typically depend on how well the trust is managed, so every penny of gain or loss is at the beneficiaries' risk. By contrast, a defined-benefit plan is more in the nature of a

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contract. The plan participants' benefits are fixed and will not change, regardless of how well or poorly the plan is managed. The benefits paid to the participants in a defined-benefit plan are not tied to the value of the plan. Moreover, the employer, not plan participants, receives any surplus left over after all of the benefits are paid; the employer, not plan participants, is on the hook for plan shortfalls. See *Beck*, 551 U. S., at 98–99. As this Court has stated before, plan participants possess no equitable or property interest in the plan. See *Hughes Aircraft Co.*, 525 U. S., at 439–441; see also *LaRue v. DeWolff, Boberg & Associates, Inc.*, 552 U. S. 248, 254–256 (2008). The trust-law analogy therefore does not fit this case and does not support Article III standing for plaintiffs who allege mismanagement of a defined-benefit plan.

Second, Thole and Smith assert standing as representatives of the plan itself. But in order to claim “the interests of others, the litigants themselves still must have suffered an injury in fact, thus giving” them “a sufficiently concrete interest in the outcome of the issue in dispute.” *Hollingsworth v. Perry*, 570 U. S. 693, 708 (2013) (internal quotation marks omitted); cf. *Gollust v. Mendell*, 501 U. S. 115, 125–126 (1991) (suggesting that shareholder must “maintain some continuing financial stake in the litigation” in order to have Article III standing to bring an insider trading suit on behalf of the corporation); *Craig v. Boren*, 429 U. S. 190, 194–195 (1976) (vendor who “independently” suffered an Article III injury in fact could then assert the rights of her customers). The plaintiffs themselves do not have a concrete stake in this suit.

The plaintiffs point to the Court's decisions upholding the Article III standing of assignees—that is, where a party's right to sue has been legally or contractually assigned to another party. But here, the plan's claims have not been legally or contractually assigned to Thole or Smith. Cf. *Sprint Communications Co. v. APCC Services, Inc.*, 554

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U. S. 269, 290 (2008); *Vermont Agency of Natural Resources v. United States ex rel. Stevens*, 529 U. S. 765, 771–774 (2000) (*qui tam* statute makes a relator a partial assignee and “gives the relator himself an interest in the lawsuit”) (emphasis deleted). The plaintiffs’ invocation of cases involving guardians, receivers, and executors falls short for basically the same reason. The plaintiffs have not been legally or contractually appointed to represent the plan.

Third, in arguing for standing, Thole and Smith stress that ERISA affords the Secretary of Labor, fiduciaries, beneficiaries, and participants—including participants in a defined-benefit plan—a general cause of action to sue for restoration of plan losses and other equitable relief. See ERISA §§ 502(a)(2), (3), 29 U. S. C. §§ 1132(a)(2), (3). But the cause of action does not affect the Article III standing analysis. This Court has rejected the argument that “a plaintiff automatically satisfies the injury-in-fact requirement whenever a statute grants a person a statutory right and purports to authorize that person to sue to vindicate that right.” *Spokeo, Inc. v. Robins*, 578 U. S. 330, 341 (2016); see *Raines v. Byrd*, 521 U. S. 811, 820, n. 3 (1997). The Court has emphasized that “Article III standing requires a concrete injury even in the context of a statutory violation.” *Spokeo*, 578 U. S., at 341. Here, the plaintiffs have failed to plausibly and clearly allege a concrete injury.¹

Fourth, Thole and Smith contend that if defined-benefit plan participants may not sue to target perceived fiduciary misconduct, no one will meaningfully regulate plan fiduciaries. For that reason, the plaintiffs suggest that defined-benefit plan participants must have standing to sue. But this Court has long rejected that kind of argument for Article III standing. See *Valley Forge Christian College v. Americans United for Separation of Church and State, Inc.*, 454 U. S. 464, 489 (1982) (the “‘assumption that if respond-

¹To be clear, our decision today does not concern suits to obtain plan information. See, e. g., ERISA § 502(a)(1)(A), 29 U. S. C. § 1132(a)(1)(A).

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ents have no standing to sue, no one would have standing, is not a reason to find standing’”) (quoting *Schlesinger v. Reservists Comm. to Stop the War*, 418 U. S. 208, 227 (1974)).

In any event, the argument rests on a faulty premise in this case because defined-benefit plans are regulated and monitored in multiple ways. To begin with, employers and their shareholders often possess strong incentives to root out fiduciary misconduct because the employers are entitled to the plan surplus and are often on the hook for plan shortfalls. Therefore, about the last thing a rational employer wants or needs is a mismanaged retirement plan. Cf. ERISA § 4062(a), 29 U. S. C. § 1362(a). Moreover, ERISA expressly authorizes the Department of Labor to enforce ERISA’s fiduciary obligations. See ERISA § 502(a)(2), 29 U. S. C. § 1132(a)(2). And the Department of Labor has a substantial motive to aggressively pursue fiduciary misconduct, particularly to avoid the financial burden of failed defined-benefit plans being backloaded onto the Federal Government. When a defined-benefit plan fails and is unable to pay benefits to retirees, the federal Pension Benefit Guaranty Corporation is required by law to pay the vested pension benefits of the retirees, often in full. The Department of Labor is well positioned to understand the relationship between plan failure and the PBGC because, by law, the PBGC operates within the Department of Labor, and the Secretary of Labor chairs the Board of the PBGC. See ERISA §§ 4002(a), (d), 29 U. S. C. §§ 1302(a), (d). On top of all that, fiduciaries (including trustees who are fiduciaries) can sue other fiduciaries—and they would have good reason to sue if, as Thole and Smith posit, one fiduciary were using the plan’s assets as a “personal piggybank.” Brief for Petitioners 2. In addition, depending on the nature of the fiduciary misconduct, state and federal criminal laws may apply. See, e. g., 18 U. S. C. §§ 664, 1954; ERISA § 514(b)(4), 29 U. S. C. § 1144(b)(4). In short, under ERISA, fiduciaries who manage defined-benefit plans face a regulatory phalanx.

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In sum, none of the plaintiffs' four theories supports their Article III standing in this case.

One last wrinkle remains. According to the plaintiffs' *amici*, plan participants in a defined-benefit plan have standing to sue if the mismanagement of the plan was so egregious that it substantially increased the risk that the plan and the employer would fail and be unable to pay the participants' future pension benefits. Cf. *Clapper v. Amnesty Int'l USA*, 568 U. S. 398, 414, n. 5 (2013); *Lee v. Verizon Communications, Inc.*, 837 F. 3d 523, 545–546 (CA5 2016); *David v. Alphin*, 704 F. 3d 327, 336–338 (CA4 2013). But the plaintiffs do not assert that theory of standing in this Court. In any event, the plaintiffs' complaint did not plausibly and clearly claim that the alleged mismanagement of the plan substantially increased the risk that the plan and the employer would fail and be unable to pay the plaintiffs' future pension benefits. It is true that the plaintiffs' complaint alleged that the plan was underfunded for a period of time. But a bare allegation of plan underfunding does not itself demonstrate a substantially increased risk that the plan and the employer would both fail. Cf. *LaRue*, 552 U. S., at 255 (“Misconduct by the administrators of a defined benefit plan will not affect an individual’s entitlement to a defined benefit unless it creates or enhances the risk of default by the entire plan”).²

² Even if a defined-benefit plan is mismanaged into plan termination, the federal PBGC by law acts as a backstop and covers the vested pension benefits up to a certain amount and often in full. For example, if the plan and the employer in this case were to fail, the PBGC would be required to pay these two plaintiffs all of their vested pension benefits in full. See ERISA §§ 4022(a), (b), 29 U. S. C. §§ 1322(a), (b); Tr. of Oral Arg. 18–19; see also Congressional Research Service, Pension Benefit Guaranty Corporation (PBGC): A Primer 1 (2019); PBGC, General FAQs About PBGC, <https://www.pbgc.gov/about/faq/general-faqs-about-pbgc>. Any increased-risk-of-harm theory of standing therefore might not be available for plan participants whose benefits are guaranteed in full by the PBGC. But we need not decide that question in this case.

THOMAS, J., concurring

* * *

Courts sometimes make standing law more complicated than it needs to be. There is no ERISA exception to Article III. And under ordinary Article III standing analysis, the plaintiffs lack Article III standing for a simple, common-sense reason: They have received all of their vested pension benefits so far, and they are legally entitled to receive the same monthly payments for the rest of their lives. Winning or losing this suit would not change the plaintiffs' monthly pension benefits. The plaintiffs have no concrete stake in this dispute and therefore lack Article III standing. We affirm the judgment of the U. S. Court of Appeals for the Eighth Circuit.

It is so ordered.

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, concurring.

I agree with the Court's opinion, which correctly applies our precedents and concludes that petitioners lack standing. I also agree that "[c]ourts sometimes make standing law more complicated than it needs to be." *Ante*, at 547. I write separately to observe that by requiring us to engage with petitioners' analogies to trust law, our precedents unnecessarily complicate this case.

The historical restrictions on standing provide a simpler framework. Article III vests "[t]he judicial Power of the United States" in the federal courts and specifies that it shall extend to enumerated categories of "Cases" and "Controversies." §§ 1, 2. "To understand the limits that standing imposes on 'the judicial Power,' . . . we must 'refer directly to the traditional, fundamental limitations upon the powers of common-law courts.'" *Spokeo, Inc. v. Robins*, 578 U. S. 330, 344 (2016) (THOMAS, J., concurring) (quoting *Honig v. Doe*, 484 U. S. 305, 340 (1988) (Scalia, J., dissenting)); see also *Muskrat v. United States*, 219 U. S. 346, 356–357 (1911) (observing that the "judicial power with the right to determine

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‘cases’ and ‘controversies’” has long referred to “suit[s] instituted according to the regular course of judicial procedure”).

“Common-law courts imposed different limitations on a plaintiff’s right to bring suit depending on the type of right the plaintiff sought to vindicate.” *Spokeo*, 578 U. S., at 344 (THOMAS, J., concurring). Rights were typically divided into private rights and public rights. Private rights are those “‘belonging to individuals, considered as individuals.’” *Ibid.* (quoting 3 W. Blackstone, Commentaries *2); see also Woolhandler & Nelson, Does History Defeat Standing Doctrine? 102 Mich. L. Rev. 689, 693 (2004). Public rights are “owed ‘to the whole community, considered as a community, in its social aggregate capacity.’” *Spokeo*, *supra*, at 345 (THOMAS, J., concurring) (quoting 4 Blackstone, *supra*, at *5); see also Woolhandler & Nelson, *supra*, at 693.

Petitioners claim violations of private rights under the Employee Retirement Income Security Act of 1974 (ERISA). “In a suit for the violation of a private right, courts historically presumed that the plaintiff suffered a *de facto* injury [if] his personal, legal rights [were] invaded.” *Spokeo*, *supra*, at 344 (THOMAS, J., concurring). In this case, however, none of the rights identified by petitioners belong to them. The fiduciary duties created by ERISA are owed to the plan, not petitioners. See 29 U.S.C. §§ 1104(a)(1), 1105(a), 1106(a)(1), 1106(b), 1109(a). As participants in a defined benefit plan, petitioners have no legal or equitable ownership interest in the plan assets. See *ante*, at 543. There has been no assignment of the plan’s rights by ERISA or any contract. See *ante*, at 543–544. And petitioners cannot rely on ERISA § 502(a). Although it establishes certain causes of action, it creates no private right. See § 1132(a).

There is thus no need to analogize petitioners’ complaint to trust law actions, derivative actions, *qui tam* actions, or anything else. We need only recognize that the private rights that were allegedly violated do not belong to petitioners under ERISA or any contract.

SOTOMAYOR, J., dissenting

Our ERISA precedents have especially complicated the question of standing in this case due to their misinterpretations of the statute. I continue to object to this Court’s practice of using the common law of trusts as the “starting point” for interpreting ERISA. *Varity Corp. v. Howe*, 516 U. S. 489, 497 (1996). “[I]n ‘every case involving construction of a statute,’ the ‘starting point . . . is the language itself.’” *Id.*, at 528 (THOMAS, J., dissenting) (quoting *Ernst & Ernst v. Hochfelder*, 425 U. S. 185, 197 (1976); ellipsis in original). This is especially true for ERISA because its “statutory definition of a fiduciary departs from the common law.” *Varity, supra*, at 528. The Court correctly applies *Varity* here, but in an appropriate case, we should reconsider our reliance on loose analogies in both our standing and ERISA jurisprudence.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE KAGAN join, dissenting.

The Court holds that the Constitution prevents millions of pensioners from enforcing their rights to prudent and loyal management of their retirement trusts. Indeed, the Court determines that pensioners may not bring a federal lawsuit to stop or cure retirement-plan mismanagement until their pensions are on the verge of default. This conclusion conflicts with common sense and longstanding precedent.

I

A

ERISA¹ protects “the interests of participants in employee benefit plans and their beneficiaries.” 29 U. S. C. § 1001(b). Chief among these safeguards is that “all assets of an employee benefit plan” must “be held in trust by one or more trustees” for “the exclusive purposes of providing

¹Employee Retirement Income Security Act of 1974, 88 Stat. 829, as amended, 29 U. S. C. § 1001 *et seq.*

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benefits to participants in the plan and their beneficiaries.” §§1103(a), (c)(1). A retirement plan’s assets “shall never inure to the benefit of any employer.” §1103(c)(1).

Because ERISA requires that retirement-plan assets be held in trust, it imposes on the trustees and other plan managers “‘strict standards’” of conduct “‘derived from the common law of trusts.’” *Fifth Third Bancorp v. Dudenhoeffer*, 573 U. S. 409, 416 (2014) (quoting *Central States, Southeast & Southwest Areas Pension Fund v. Central Transport, Inc.*, 472 U. S. 559, 570 (1985)). These “fiduciary duties” obligate the trustees and managers to act prudently and loyally, looking out solely for the best interest of the plan’s participants and beneficiaries—typically, the employees who sacrifice wages today to secure their retirements tomorrow. §§1104, 1106. Not surprisingly, ERISA fiduciaries owe duties not only to the plan they manage, but also “to the beneficiaries” and participants for whom they manage it. *Harris Trust and Sav. Bank v. Salomon Smith Barney Inc.*, 530 U. S. 238, 241–242, 250 (2000).

If a fiduciary flouts these stringent standards, ERISA provides a cause of action and makes the fiduciary personally liable. §§1109, 1132. The United States Secretary of Labor, a plan participant or beneficiary, or another fiduciary may sue for “appropriate relief under section 1109.” §1132(a)(2); see also §1132(a)(3) (permitting participants, beneficiaries, or fiduciaries to bring suit “to enjoin any act or practice which violates any provision of this subchapter or the terms of the plan”). Section 1109’s remedies include restoration of lost assets, disgorgement of ill-gained profits, and removal of the offending fiduciaries. §1109(a).

B

Petitioners allege that, as of 2007, respondents breached their fiduciary duty of loyalty by investing pension-plan assets in respondents’ own mutual funds and by paying themselves excessive management fees. (Petitioners fur-

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ther contend that this self-dealing persists today.) According to the complaint, the fiduciaries also made imprudent investments that allowed them to manipulate accounting rules, boost their reported incomes, inflate their stock prices, and exercise lucrative stock options to their own (and their shareholders') benefit.

Then came the Great Recession. In 2008, the retirement plan lost \$1.1 billion, allegedly \$748 million more than a properly managed plan would have lost. So some of the plan's participants sued under 29 U. S. C. § 1132(a) for the relief Congress contemplated: restoration of losses, disgorgement of respondents' ill-gotten profits and fees, removal of the disloyal fiduciaries, and an injunction to stop the ongoing breaches. Faced with this lawsuit, respondents returned to the plan about \$311 million (less than half of what the plan had lost) and none of the profits respondents had unlawfully gained. See 873 F. 3d 617, 630–631 (CA8 2018).

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In the Court's words, the question here is whether petitioners have alleged a "concrete" injury to support their constitutional standing to sue. *Ante*, at 541–542. They have for at least three independent reasons.

A

First, petitioners have an interest in their retirement plan's financial integrity, exactly like private trust beneficiaries have in protecting their trust. By alleging a \$750 million injury to that interest, petitioners have established their standing.

1

This Court typically recognizes an "injury in fact" where the alleged harm "has a close relationship to" one "that has traditionally been regarded as providing a basis for a lawsuit in English or American courts." *Spokeo, Inc. v. Robins*, 578 U. S. 330, 341 (2016). Thus, the Court acknowledges that

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“private trust” beneficiaries have standing to protect the assets in which they have an “equitable” interest. *Ante*, at 542. The critical question, then, is whether petitioners have an equitable interest in their retirement plan’s assets even though their pension payments are fixed.

They do. ERISA expressly required the creation of a trust in which petitioners are the beneficiaries: “[A]ll assets” of the plan “shall be held in trust” for petitioners’ “exclusive” benefit. 29 U.S.C. §§ 1103(a), (c)(1); see also § 1104(a)(1).² These requirements exist regardless whether the employer establishes a defined-benefit or defined-contribution plan. § 1101(a). Similarly, the Plan Document governing petitioners’ defined-benefit plan states that, at “‘all times,’” all plan assets “‘shall’” be in a “‘trust fund’” managed for the participants’ and beneficiaries’ “‘exclusive benefit.’” App. 60–61. The Plan Document also gives petitioners a residual interest in the trust fund’s assets: It instructs that, “[u]pon termination of the Plan, each Participant [and] Beneficiary” shall look to “the assets of the [trust fund]” to “provide the benefits otherwise apparently promised in this Plan.” Record in No. 13–cv–2687 (D Minn.), Doc. 107–1, p. 75. This arrangement confers on the “participants [and] beneficiaries” of a defined-benefit plan an equitable stake, or a “common interest,” in “the financial integrity of the plan.” *Massachusetts Mut. Life Ins. Co. v. Russell*, 473 U.S. 134, 142, n. 9 (1985).

Petitioners’ equitable interest finds ample support in traditional trust law. “The creation of a trust,” like the one here, provides beneficiaries “an equitable interest in the subject matter of the trust.” Restatement (Second) of Trusts § 74, Comment *a*, p. 192 (1957); see *Blair v. Commissioner*, 300

² Generally, “a trust is created when one person (a ‘settlor’ or ‘grantor’) transfers property to a third party (a ‘trustee’) to administer for the benefit of another (a ‘beneficiary’).” *North Carolina Dept. of Revenue v. Kimberley Rice Kaestner 1992 Family Trust*, 588 U.S. 262, 265 (2019); see also Restatement (Second) of Trusts § 2 (1957). Neither the Court nor respondents dispute that petitioners’ pension fund meets these elements.